



CHAPTER clxvi.

An Act for consolidating the capital of the Derby Gas Light and Coke Company for enabling that Company to raise additional capital and for other purposes.

A.D. 1903.

[11th August 1903.]

WHEREAS the Derby Gas Light and Coke Company (in this Act called "the Company") were incorporated by the Derby Gas Act 1852 (in this Act called "the Act of 1852") and further powers were conferred upon them by the Midland Railway (Derby Gas) Act 1867 the Derby Gas Act 1876 and the Derby Gas Act 1890 (which are in this Act called respectively "the Act of 1867" "the Act of 1876" and "the Act of 1890" and which together with the Act of 1852 are in this Act called "the recited Acts"):

15 & 16 Vict.
c. xiv.
30 & 31 Vict.
c. xxvii.
39 & 40 Vict.
c. v.
53 & 54 Vict.
c. xx.

And whereas the Company were authorised by the Act of 1852 to raise capital of an amount of sixty thousand pounds by the creation and issue of shares of twenty-five pounds each and certain of such shares were under the provisions of that Act sold by public auction:

And whereas the Company were authorised by the Act of 1852 to borrow on mortgage of the undertaking a sum of twenty thousand pounds and subject to the provisions in the said Act contained were authorised to raise the said sum of twenty thousand pounds by the creation and issue of shares of twenty-five pounds each:

And whereas the Company in the exercise of the said powers and of the powers in that behalf contained in the Companies Clauses Consolidation Act 1845 have raised the amount of eighty thousand pounds by the creation and issue of ordinary stock:

And whereas under the Act of 1876 the Company were authorised to raise and have raised the sum of one hundred and

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And whereas under the Act of 1890 the Company were authorised to raise the sum of eighty thousand pounds by the creation and issue of ordinary shares or stock entitled to a maximum dividend of five per centum per annum And the Company have raised the said sum by the issue of sixty-eight thousand and seventy-three pounds ordinary stock being the amount of stock required together with the premiums obtained upon the sale thereof to raise the said sum of eighty thousand pounds :

And whereas the Company were authorised by the Acts of 1876 and 1890 to raise the sum of fifty-five thousand pounds by borrowing upon mortgage of the undertaking or by the creation and issue of debenture stock and of that sum the Company have raised the sum of fifty thousand pounds by the creation and issue of debenture stock bearing interest at the rate of four per centum per annum :

And whereas it is expedient that provision should be made as in this Act contained for the consolidation of the ordinary stocks of the Company into one stock bearing a uniform rate of dividend of five per centum per annum subject to increase or reduction as in this Act provided :

And whereas the Company now supply gas at a fixed maximum price and it is expedient that provision should be made as in this Act contained whereby the rate of dividend payable by the Company upon their ordinary capital shall be regulated according to the price charged for gas :

And whereas the parishes of Chellaston Elvaston and Aston-on-Trent all in the county of Derby are adjacent to the present limits of supply of the Company and are not now supplied with gas And it is expedient that the Company should be empowered to supply gas within those parishes :

And whereas the demand for gas within the Company's limits of supply has increased and is increasing and it is expedient in order to meet such increased demand and to supply within the parishes aforesaid that the Company should be authorised to raise additional capital :

And whereas it is expedient that further powers should be conferred upon the Company as in this Act provided :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the A.D. 1903.
authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the Derby Gas Act 1903 and the Short titles.
recited Acts and this Act may be cited together as the Derby Gas
Acts 1852 to 1903.

2. The following Acts and parts of Acts so far as the same Incorporation
are applicable for the purposes of and are not inconsistent with of Acts
the provisions of this Act are hereby incorporated with this
Act (namely) :—

The Lands Clauses Acts (except the provisions thereof with
respect to the purchase and taking of lands otherwise than
by agreement) :

The Gasworks Clauses Act 1847 as amended by the Gasworks
Clauses Act 1871 :

The provisions of the Companies Clauses Consolidation Act
1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into
shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing
the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the
shareholders ;

The borrowing of money by the Company on mortgage or
bond ;

The consolidation of the shares into stock ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the
special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III. (relating
to debenture stock) of the Companies Clauses Act 1863 as
amended by subsequent Acts.

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incorpo-
rated herewith have the same respective meanings unless there be
something in the subject or context repugnant to such construction :

The expression “the corporation” means the mayor aldermen
and burgesses of the borough of Derby ; and

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The expression "limits of supply" means the limits within which the Company are authorised by the recited Acts to supply gas as extended by this Act.

EXTENSION OF LIMITS OF SUPPLY.

Extension of
limits of
supply.

4. From and after the passing of this Act the limits of supply of the Company shall be extended so as to include the following parishes and places not now within the limits of supply of the Company (that is to say) Chellaston Elvaston and Aston-on-Trent all in the county of Derby and the Company shall have and may exercise within the limits of supply all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the limits of supply of the Company as defined by section 38 of the Act of 1852.

For protec-
tion of rail-
way canal or
other com-
panies.

5. Any mains pipes or other works which the Company may under the powers of this Act lay down or execute under or over or which may affect any railway canal or works of any railway canal or other company shall (except in cases of emergency) be laid down and executed and subsequently maintained and repaired by the Company under the direction and superintendence and to the reasonable satisfaction of the chief engineer for the time being of the said railway canal or other company in accordance with plans and sections previously submitted and approved by him.

If any difference arises between the Company and any railway canal or other company whose lands or works the Company have power to cross under the authority of this Act as to the mode of laying down repairing or enlarging their mains or pipes or other works or the facilities to be afforded for the same such difference shall be settled by an engineer to be appointed by the Board of Trade at the request of either party.

CAPITAL &c.

Consolida-
tion of stock.

6.—(1) On the first day of January one thousand nine hundred and four all the then existing ordinary stock of the Company shall be consolidated and converted into an equivalent amount of ordinary stock bearing a uniform dividend at the rate of five per centum per annum and shall be divided amongst the holders of stock in the existing ordinary capital of the Company as follows (that is to say):—

To each holder of one hundred pounds of existing ordinary stock entitled to a maximum dividend of ten per centum per

annum two hundred pounds of the ordinary stock created by virtue of this section : A.D. 1903.

To each holder of one hundred pounds of existing ordinary stock entitled to a maximum dividend of seven per centum per annum the sum of one hundred and forty pounds of the ordinary stock created by virtue of this section :

To each holder of one hundred pounds of existing ordinary stock entitled to a maximum dividend of five per centum per annum the sum of one hundred pounds of the ordinary stock created by virtue of this section :

And so in proportion for any less amount than one hundred pounds of the existing ordinary capital of the Company.

(2) On the said first day of January one thousand nine hundred and four there shall be by virtue of this Act created such a nominal amount of ordinary stock of the Company as shall be necessary to give effect to the provisions of this section and the amounts of ordinary stock to which the holders of existing stock become by virtue of this Act respectively entitled in substitution for such existing stock shall be vested in such holders on the said first day of January one thousand nine hundred and four and shall be forthwith registered in their respective names in the books of the Company.

(3) Such ordinary stock shall be held in the same right on the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the existing stock for which the ordinary stock is substituted was held or were subject to immediately before the said first day of January one thousand nine hundred and four and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing stock and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any existing stock in the Company respectively are hereby expressly authorised to accept and hold any stock issued in substitution therefor under the powers of this Act and are hereby indemnified from all acts bonâ fide done by them in pursuance of the provisions of this Act.

(4) In every case where under the provisions of this section a holder of existing stock would be entitled to any fractional part of five pounds of ordinary stock created by virtue of this section the Company shall not be bound to register such fractional part of five pounds of stock but may at the option of the Company pay to such holder such a sum in cash as shall be equal to the market value of

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Holders of stock to have same rights as they have in regard to existing capital.

7. The holders of the Company's ordinary stock shall (subject to the provisions of this Act) respectively be and continue entitled and subject to all their existing rights and liabilities as holders of existing capital except that on and after the first day of January one thousand nine hundred and four they shall cease to be entitled to any dividends other than the dividends provided for by this Act and that on and after the said date they shall be entitled to be and be holders of their proper proportions of the ordinary stock created by virtue of this Act.

Certificates of stock to be called in and others issued.

8. The Company shall call in the certificates of stock for which ordinary stock is substituted by this Act and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of ordinary stock of the respective amounts to which those proprietors are by this Act respectively entitled but no stockholder shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof. Provided that until the issue of such new certificates the holders of the existing certificates shall (according to the amounts of ordinary stock to be substituted by virtue of this Act for the existing stock which they respectively represent) have and possess the same rights and advantages as if such existing certificates were certificates for those respective amounts of ordinary stock created by virtue of this Act but if any such holder neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the books of the Company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the ordinary stock so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

9. All transfers or other dispositions of any stock in the capital of the Company as existing up to the consolidation thereof under the provisions of this Act shall after such consolidation and notwithstanding this Act be valid and have due effect given to them respectively as transfers or dispositions of the amounts of ordinary stock created by virtue of this Act which represent the stock thereby expressed to be transferred or disposed of and which are substituted for the same by this Act although the instrument transferring or disposing of the same shall describe the same by the name or denomination which the stock transferred or disposed of had before such consolidation and the bequest of or any covenant or provision of any deed or agreement relating to any specific nominal amount of any such existing stock consolidated by this Act into stock of larger nominal amount shall be held to apply to a nominal amount of ordinary stock equal to that into which such existing stock shall have been consolidated by this Act.

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Transfers
of stock
although by
present name
to be valid.

10.—(1) Any transfer of ordinary stock may be made in amounts of five pounds or in multiples of five pounds so long as thereby no holding of any stockholder of the Company is less than ten pounds of stock.

Multiples of
stock.

(2) Notice of the effect of this enactment shall be stated in all stock certificates.

11. Subject to the provisions of this Act sections 11 to 13 and 62 to 64 of the Companies Clauses Consolidation Act 1845 shall extend and apply to the ordinary stock and sections 18 to 20 of that Act shall be deemed and construed to include and apply to ordinary stock and dividends thereon as if such stock and dividends respectively had been expressly named in the said sections.

Application
of provisions
of Companies
Clauses Con-
solidation
Act 1845 to
ordinary
stock.

12. The Company may raise additional capital not exceeding in the whole one hundred and twenty-five thousand pounds by the creation and issue of ordinary stock but no such stock shall vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred and twenty-five thousand pounds.

Power to
Company to
raise addi-
tional capital.

13. Notwithstanding anything in this Act contained the Company shall when any stock created under the powers of this

New stock to
be offered by

A.D. 1903. auction or tender. Act is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that notice of the amount of the reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner. Provided also that no priority shall be allowed to any holder of stock in the Company except that if any bidding or offer by tender of any holder or holders of stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of stock shall be accepted in preference and preference may in like manner be given to any employee of the Company or any consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of stock in the Company.

Purchase-money to be paid within one month. **14.** It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within one month after such sale.

Notice to be given as to sale of stock. **15.** The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of Derby to the clerks to the district councils for every district wholly or partly included in the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

Stock not sold may be offered to shareholders employees or consumers. **16.--(1)** When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same may (if the directors of the Company think fit) be offered at the reserved price put upon the same for the purpose of sale by auction or tender to the holders of preference or ordinary shares or stock of the Company in manner provided by the

Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others. A.D. 1903. —

(2) Any stock not so offered and any stock so offered and not accepted in the case of stock offered to the holders of shares or stock within the time prescribed by the said Act or in the case of stock offered to such employees or consumers within the time limited by the directors of the Company may again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act and at such time or times as the directors of the Company may think fit and any stock not then sold may be again offered to the holders of preference or ordinary shares or stock or to such employees or consumers at the reserved price put upon the same at such second auction or tender and so from time to time until the whole of such stock is sold.

17. Any sum of money which shall arise from the issue of any such stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that all such sums shall be deemed to be part of the nominal and paid-up capital of the Company for the purpose of determining the amounts they may place to the renewal or insurance fund respectively. Application of premium arising on issue of stock.

18. The additional capital by this Act authorised shall form part of the general capital of the Company and the proprietors of any stock to be issued under the authority of this Act shall subject to the provisions of this Act be entitled to a dividend with the other holders of stock. Incidents of additional capital.

19. The Company may at any time and from time to time after the thirty-first day of December one thousand nine hundred and three borrow on mortgage of the undertaking any sum or sums not exceeding (inclusive of the sum of fifty-five thousand pounds already authorised to be raised by the issue of debenture stock in pursuance of the recited Acts) one fourth of the nominal amount of the ordinary stock into which the ordinary capital of the Company is by this Act consolidated. Power to borrow in respect of consolidated stock.

20. Section 32 (Appointment of a receiver) of the Act of 1890 is hereby repealed but without prejudice to any appointment hereto. Repeal of provisions of recited Acts

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with respect
to appoint-
ment of
receiver.

For appoint-
ment of
receiver.

fore made thereunder or to the continuance of any proceedings which may have been commenced under such provision prior to the passing of this Act.

21. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Debenture
stock.

22. The Company may raise all or any part of the money which they are by this Act authorised to borrow by the creation and issue of debenture stock under and subject to the provisions of section 30 of the Act of 1890. Notice of the effect of that enactment shall be endorsed on all mortgages and certificates of debenture stock granted or issued after the passing of this Act.

Debenture
stock to be
sold by
auction or
tender.

23. The provisions of this Act with respect to disposing of stock by auction or tender shall apply *mutatis mutandis* not only to the additional ordinary stock of the Company but also to any debenture stock to be created by the Company under this Act.

Priority of
mortgages
and debenture
stock
over other
debts.

24. All money raised or to be raised by the Company on mortgage or by debenture stock under the provisions of the recited Acts or of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on their mortgages or debenture stock.

Receipt in
case of per-
sons not sui
juris.

25. If any money is payable to a stockholder mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application
of money.

26. All money raised under this Act by the Company whether by stock debenture stock or borrowing shall be applied only to the general purposes of the Company being in all cases purposes to which capital is properly applicable.

27. If the clear profits of the undertaking of the Company in any one year amount to a larger sum than is sufficient to pay the interest on the debenture stock and the authorised rate of dividend on the ordinary consolidated stock the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the amount of the capital for the time being expended by the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth part of the capital as aforesaid which sum shall form an insurance fund under the provisions of this Act to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accidents strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time and so often as such reduction shall happen Provided that when and so often as the said fund shall reach one-twentieth part of the said capital the interest thereon shall be carried to the credit of the fund available for dividend Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount thereof.

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Insurance
fund.

28. When in any year the dividend on the ordinary capital of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other similar fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the authorised rate of dividend on the ordinary capital of the Company

Power to
create a
reserve fund
out of divi-
dends in
excess of
standard rate
of dividend
and applica-
tion thereof.

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Repeal of
section 12 of
Act of 1876
and sections
19 and 33 of
Act of 1890.

29. On and as from the first day of January one thousand nine hundred and four section 12 (Limit of dividends on new capital) of the Act of 1876 and sections 19 (Limit of dividend on new capital) and 33 (Maximum price of gas) of the Act of 1890 shall be and the same are hereby repealed.

Limitation
of profits.

30. Notwithstanding anything contained in the recited Acts as from the first day of January one thousand nine hundred and four the profits of the Company to be divided amongst the holders of the ordinary capital of the Company in any year shall not (except as by this Act provided) exceed the rate of five pounds per centum per annum which rate is in this Act referred to as "the standard rate of dividend."

Sliding scale.

31. On and after the said first day of January one thousand nine hundred and four the price to be charged by the Company for gas supplied by them to persons who shall burn the same by meter (other than a prepayment meter) shall in the borough of Derby be two shillings and tenpence and in the remainder of the limits of supply be three shillings and twopence per one thousand cubic feet:

Provided that the Company may increase or reduce the price charged by them for gas in the said portions of the limits of supply above or below the said prices subject to a reduction or increase in the standard rate of dividend as follows:—

If during any half year the price charged by the Company for gas shall have been increased in the borough of Derby above three shillings and one penny per thousand cubic feet or elsewhere within the limits of supply above three shillings and fourpence per thousand cubic feet then the dividend payable by the Company for that half year shall be reduced at the rate of one shilling and threepence upon every one hundred pounds of ordinary stock in respect of each penny or part of a penny of increase but such reduction shall be calculated only upon whichever of the said prices shall have been increased to the greater extent:

If during any half year the prices charged by the Company for gas shall have been reduced below both the said prices of two shillings and tenpence and three shillings and twopence then the dividend payable by the Company for that half year may be increased above the standard rate of dividend at the rate of one shilling and threepence upon every one hundred pounds of ordinary stock in respect of each penny by which such prices shall have been

reduced below the said prices of two shillings and tenpence and three shillings and twopence but such increase shall be calculated only upon whichever of the said prices shall have been reduced to the lesser extent :

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Provided that if in any half year the dividend payable shall comprise a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

32.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than for gas supplied to private consumers within or without the borough of Derby as the case may be through any other kind of meter or by any other method of supply.

Charges for gas supplied by means of prepayment meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Company and the Company's Acts applicable to ordinary meters shall so far as applicable apply to prepayment meters.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

33. If the clear profits of the undertaking of the Company in any half year amount to a larger sum than is sufficient to pay the authorised rate of dividend on the ordinary stock of the Company the excess or such portion of it as is not carried to the insurance fund or the renewal fund shall be carried to the credit of the divisible profits of the undertaking for the next following year.

Application of excess of profits over authorised rate of dividend.

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General
meetings of
Company.

34. Section 26 (First general meeting after commencement of Act) of the Act of 1852 is hereby repealed and from and after the passing of this Act the prescribed period for the holding of the general meeting of the Company shall be the month of February in each year or such other period as may be appointed for that purpose at a general meeting of the Company.

Declaration
by directors
of half-yearly
dividends.

35. The directors may declare and pay the half-yearly dividend payable out of the profits of the Company for any half year ending on the thirtieth day of June without the sanction or direction of a general meeting of stockholders but no such half-yearly dividend shall exceed one half of the standard rate of dividend.

Closing of
transfer
books pre-
vious to
declaring
dividend.

36. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published in the borough of Derby and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

LANDS.

Power to
purchase
lands by
agreement.

37. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands now belonging to them any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Schedule to this Act and the lands which the Company are authorised by the recited Acts to use for such purpose.

Powers as to
construction
and mainten-
ance of gas-
works &c.
on lands
described in
Schedule.

38. The Company may upon the lands described in the Schedule to this Act now belonging or reputed to belong to the Company maintain and continue the existing gasworks thereon and may erect and maintain new or altered gasworks retort houses retorts gasholders purifiers mains pipes machinery and other apparatus works and conveniences for the manufacture conversion and supply of gas coke tar pitch ammoniacal liquor and other residual products obtained in or resulting from the manufacture of gas and on those lands may make store and convert gas and any residual products

and any other substances products or matters producible therefrom or used in relation to the production or manufacture thereof.

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39. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect and maintain dwelling-houses for such persons upon any lands for the time being belonging to or leased by the Company.

Dwelling-houses for persons in Company's employ.

40. The Company may sell and dispose of or may let on lease for such period as they think fit any lands for the time being belonging to them and which may not at the time be required for the purposes of their undertaking and any such disposal or lease may be for such consideration and subject to such reservations stipulations and conditions as the Company think fit And notwithstanding anything in the Gasworks Clauses Act 1871 contained the provisions of sections 128 to 132 (both inclusive) of the Lands Clauses Consolidation Act 1845 shall not apply to any lands sold or disposed of by the Company under the powers of this section.

Power to sell and lease lands.

41.—(1) The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction on taking houses of labouring class.

(2) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such person who may be residing with them.

A.D. 1903.

MISCELLANEOUS.

As to specification of internal fittings and construction and placing of pipes &c. between mains and consumer's premises.

42. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specifications shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the Company's main and the consumer's meter shall be placed as near as reasonably practicable to such main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipes shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make

such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid: A.D. 1903.

- (7) This section shall not apply to pipes and fittings in premises supplied with gas at the passing of this Act:
- (8) Nothing in this section shall apply to any premises belonging to a railway company and used by such company in connection with their business.

43. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair or renew in across or along or out of such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to lay pipes in streets or roads not dedicated to public use.

44. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts: Power to lay down and utilise pipes for ancillary purposes.

Provided that the Company shall not under the powers of this section break up any street in the borough of Derby without the consent of the corporation.

45. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator of approved make or pattern and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing Power to require use of anti-fluctuators for gas engines.

A.D. 1903. — to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Power to
supply gas
fittings.
Fittings not
to be subject
to distress.

46.—(1) The Company may sell let for hire and otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes fittings and other apparatus appliances and things (in this section called “fittings”) for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration in money or such rents and charges for and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the same are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Gas con-
sumers to
give notice
to Company
before
removing.

47. Twenty-four hours’ notice in writing shall be given to the Company by every consumer of gas supplied by the Company before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be stated in every demand note for gas rent payable to the Company.

Notice of dis-
continuance.

48. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Power to
refuse to
supply per-

49. If a person requiring a supply of gas from the Company for any premises occupies or has occupied other premises at which

gas was supplied to him by the Company and has not paid all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

A.D. 1903.

sons in debt
for other
premises.

50. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and the amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Period of
error in
defective
meters.

51. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the recited Acts and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

No penalty
in case of
unavoidable
cause.

52.—(1) The Company may contract with any local authority company or persons beyond the limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Company
may enter
into contracts
for supply of
gas.

(2) The Company may enter into any contract with any person for a supply of gas to any premises within the limits of supply and such supply may be given for such purposes and subject to such terms and conditions as to price and otherwise as may be agreed upon between the Company and the person taking such supply :

Provided that the Company shall not under the powers of this subsection give any preferential price as between any consumers who shall take a supply from the Company under similar conditions and circumstances.

A.D. 1903.

—

(3) The Company shall not supply gas under any such contract as aforesaid if and so long as such supply would interfere with the supply of gas to private consumers.

Discounts.

53. The Company may if they think fit allow discounts or rebates not exceeding in any case twenty-five per centum to consumers of gas in consideration of prompt payment of gas rents or of large consumption or in respect of gas supplied by contract or for motive power upon such scale and subject to such conditions and regulations as may be prescribed by special contract in writing between the Company and any of such consumers Provided that such discounts shall be of equal amount under like circumstances to all consumers Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Quality and
testing of gas.

54. From and after the first day of January one thousand nine hundred and four section 24 (Burner) of the Act of 1876 shall be and the same is hereby repealed and section 35 (As to purity and illuminating power) of the Act of 1890 shall be read and have effect subject to the following provisions:—

- (A) The prescribed number of candles shall be fourteen :
- (B) The prescribed burner shall be Sugg's standard Argand burner for fourteen-candle gas (commonly known as "the Wandsworth test burner") with a six-inch by one-and-five-eighth-inch glass chimney :
- (C) For the purpose of ascertaining the illuminating power the gas shall be burned at such a rate as to yield the maximum light for which the burner for the time being used in making such tests shall be designed :
- (D) The standard used shall be Harcourt's ten-candle pentane lamp with table photometer :
- (E) No penalty or forfeiture shall be incurred by the Company in respect of any impurity of the gas by reason of an excess of sulphur unless that excess shall amount to five grains upon the average of six consecutive week days.

Scale of
voting.

55. As from the first day of January one thousand nine hundred and four every holder of ordinary stock shall be entitled to one vote for every twenty-five pounds of stock held by him up to one hundred pounds and to an additional vote for every fifty pounds of stock beyond the first hundred pounds held by him up to one thousand pounds and an additional vote for every hundred pounds of stock beyond the first thousand pounds held by him.

56.—(1) As from the first day of January one thousand nine hundred and four section 30 (Number and qualification of directors) of the Act of 1852 shall be and the same is hereby repealed. A.D. 1903.
Qualification
of directors.

(2) The qualification of a director of the Company shall be the possession in his own right of not less than one thousand pounds of ordinary stock.

(3) The Company may from time to time vary the number of the directors of the Company but so that the number of directors shall not at any time be less than five nor more than nine.

(4) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for six months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director.

(5) The continuing directors may act notwithstanding any vacancy in the number of directors. Provided that if the number of directors shall by such vacancy be reduced below five the continuing directors shall elect another director in manner provided by section 89 of the Companies Clauses Consolidation Act 1845.

57. After the passing of this Act no person not being a retiring director or auditor shall be eligible to be elected a director or auditor unless notice in writing be given to the secretary or left at the principal office of the Company ten days at least before the day of election that such person will be proposed to be elected a director or auditor and the secretary of the Company shall during such ten days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office. Any such person shall have been the holder of the qualifying amount of stock for at least six months prior to his election. Notice to be
given of any
person desi-
rous to be
elected as
director or
auditor.

58.—(1) Section 27 (Quorum for general meetings) of the Act of 1852 shall as from the first day of January one thousand nine hundred and four be and the same is hereby repealed. Quorum for
general
meetings.

(2) The prescribed quorum shall as from the said first day of January one thousand nine hundred and four be seven holders of ordinary stock entitled to vote at such meeting and holding not less in the aggregate than three thousand pounds of ordinary stock. Provided that no stockholder shall be entitled to vote unless he shall have been registered as a holder of the stock in respect of which he is entitled to vote for a period of three months at least before the

A.D. 1903. date of the meeting or shall have become entitled to such stock (otherwise than by purchase) from a holder who shall have been so registered.

Burners
for gas of
reduced
illuminating
power.

59. The Company shall at any time within two years after the passing of this Act if and when required by any consumer of the gas supplied by the Company supply and fix free of charge to such consumer a sufficient number of flat-flame burners suitable in all respects for the consumption of gas of the illuminating power prescribed by this Act in the place of any burners (not being incandescent burners) used by him at the time of the passing of this Act.

Notice of the provisions of this section shall be given on each demand note of the Company sent out during the said period.

Costs of Act.

60. All costs charges and expenses of and incident to the applying for preparing obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A.D. 1903.

LANDS ON WHICH THE COMPANY MAY MANUFACTURE GAS AND RESIDUAL
PRODUCTS AND STORE GAS IN ADDITION TO THE LANDS ALREADY
AUTHORISED TO BE USED BY THEM FOR THOSE PURPOSES.

Certain lands in the parish of Duffield in the county of Derby belonging
or reputed to belong to the Company and abutting on the western side of
Derby Road opposite or nearly opposite to the premises known as Flaxholme
Farm and comprising the enclosure numbered 415 on the 1/2500 Ordnance
map of the said parish second edition 1901 sheet No. XLV. 13.

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